		The Order arbitration agreement specifically provides as follows: "To initiate the arbitration, you will pay the filing fee directly to AAA and we will pay all subsequent AAA fees for the arbitration, except you are responsible for your own attorney, expert, and other witness fees and costs unless otherwise provided by law. If you prevail on any claim, we will reimburse you your filing fee. The arbitration will be held in the city or county of your residence. To learn more about the Rules and how to begin an arbitration, you may call any AAA office or go to www.adr.org" . (Ex. 1 to Decl. of Kim). Plaintiff has not made any argument as to why this language, specifically, is unconscionable. The court will STAY this action pending resolution of the parties' arbitration. (*See* Code Civ. Proc., § 1281.2.) The court sets a Status Conference Re: Status of Arbitration for December 04, 2025, at 9:00 a.m. in this department. Defendant shall give notice.
2	Luisi v. Vishnevski	<u>Motion for Leave to File Cross-Complaint</u> Defendant Vitaly Vishnevski moves for leave to file a Cross-Complaint against Plaintiffs Michael John Luisi and Diana Genin Heard and ROS 1 through 50. For the following reasons, the motion is **GRANTED**. Code Civ. Proc. § 428.10 provides that a party may file a cross-complaint setting forth: "[a]ny cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." There are two types of cross-complaints: compulsory cross-complaints and permissive cross-complaints. A compulsory cross-complaint is a cross-complaint that is asserted against the plaintiff and related to the subject matter of the complaint. (Code Civ. Proc. § 426.30.) A cross-complaint is "related" to the complaint if it arises out of the same transaction, occurrence, or series of transactions or occurrences as the complaint. (Code Civ. Proc. § 426.10(c).) All other cross-complaints are permissive cross-complaints. If the proposed cross-complaint is permissive, leave of court may be granted "in the interests of justice" at any time during the course of the action. (Code Civ. Proc. § 428.50(c).) On the other hand, if the proposed cross-complaint is compulsory, leave *must* be granted so long as defendant is acting in good faith. (Code Civ. Proc. § 426.50.) Cross-complaints for equitable indemnity are virtually always transactionally related to the complaint that has been filed in the main action. (*Time for Living Inc. v. Guy Hatfield Homes* (1991) 230 Cal.App.3d 30, 38-39.) This is because "[a]n indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore

		the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff." (*Id.* at 39.) Here, the proposed Cross-Complaint asserts causes of action for 1) express indemnity, 2) equitable indemnity, and 3) declaratory relief. The Complaint alleges that Defendants breached the warranty of habitability and breached a lease agreement by failing to maintain the premises and make certain repairs at the residence that Plaintiffs were renting. Defendant Vishnevski now alleges that Plaintiffs obligated by the terms of the lease to procure liability insurance and Plaintiff agreed to indemnify and defendant Vishnevski. Thus, the Cross-Complaint is compulsory. Even if the cross-complaint were permissive, leave to amend would be granted because it would not interfere with a trial date or otherwise prejudice the action. Moving Defendant to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to June 26, 2025, at 9:00 a.m. in this department. Plaintiff to give notice.
3	Saba v. Tayyan	Defendant Angel Tayyan's motion for protective order is **GRANTED as to John Saba, Jack Saba and George Saba's requests for admissions, set one, and DENIED as to the remaining discovery.** <u>Background facts</u> On April 17, 2023, Plaintiffs George Saba, John Saba, and Jack Saba filed this lawsuit against Defendant Angel Tayyan. According to the Complaint, in or about 1979, the parties' parents purchased property in Santa Ana. In 2008, the parties' mother (Josephine Saba) executed The Saba Family Irrevocable Inter Vivos Trust (the "2008 Trust"). The mother indicated that after her death, she wanted Plaintiffs to each receive 20% of her estate and for Defendant to receive 40%. One of the reasons Defendant was to receive a greater share was because Defendant promised that she would take care of Settlor if and when Settlor was unable to take care of herself. In 2015, Settlor executed a 2015 Restatement of Trust. The Complaint alleges Defendant took Settlor to execute the 2015 Restatement and failed to serve Plaintiffs with a copy of the document. The 2015 Restatement redistributed the 2008 Trust's assets such that Plaintiffs would receive only $30,000, $25,000, and $25,000. The Complaint alleges causes of action for 1) Breach of written contract; 2) Failure to serve Plaintiffs with documents pursuant to Probate Code Section 166061.7; 3) Breach of the implied covenant of good faith and fair dealing; 4) Fraud and deceit; 5) Negligent misrepresentation; 6) Elder abuse; 7) Undue influence; 8) Conversion; 9) Breach of fiduciary duty; 10) Negligence; 11) Intentional infliction of emotional distress; 12) Declaratory and injunctive relief; and 13) Fraud and deceit.